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Q) In the UK, Parliamentary Sovereignty allows amendments without judicial interference, whereas in India, judicial review limits Parliament's authority under Article 368.

Discuss whether India's Constitutional framework strikes a balance between Parliamentary Sovereignty and Constitutional Supremacy. (38 M)

Ans) Both India and UK recognize parliamentary sovereignty over legislation. But the extent and nature of their sovereignty differs on UK's unwritten constitution and India's written constitution and judicial review feature. As UK constitution is uncodified, there is no higher legal authority to which Parliament must be accountable. Whereas in case of India, Constitution is the supreme law of the land, thus limiting the legislature's power.

Parliamentary Sovereignty in UK

- ↳ It makes Parliament the supreme legal authority in the UK which can create or end any law.
- ↳ The courts cannot overrule its legislation and no parliament can pass laws that future parliaments cannot change.

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↳ As per the British jurist A.V. Dicey, the principle of 'Sovereignty of Parliament' in the United Kingdom has following three implications:

- a) British Parliament can make Constitutional laws by the same procedure as ordinary laws
- b) British Parliament can make, amend, substitute or repeal any law.
- c) The laws made by the British Parliament cannot be declared invalid by the Judiciary as being unconstitutional. No system of judicial review.

↳ As UK's Constitution is uncodified, it allows flexibility to make changes to the Constitutional framework through ordinary legislation.

Parliamentary Sovereignty in India

↳ Indian Parliament is not as sovereign as British Parliament.

↳ There is a synthesis between the British Principle of Parliamentary Sovereignty and the American Principle of Judicial Supremacy.

↳ The authority and jurisdiction of the Indian Parliament is limited by the

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Constitutional Supremacy.

- ↳ Article 368 grants parliament broad power to amend the Constitution, but the Supreme Court's "Basic Structure Doctrine" limits this power.
- ↳ It prevents amendment that alters the Constitution's core principles, allowing for judicial review of such amendments.

Comparison of British and Indian Parliament Sovereignty

British Approach

- ↳ Uncodified Constitution
- ↳ Can amend the Constitution through a simple majority
- ↳ functions as a unitary state.
- ↳ No system of judicial review.
- ↳ No concept of Basic Structure doctrine.

Indian Approach

- ↳ Written Constitution
- ↳ Some amendments by simple, some by special and some needs ratification by half of the states.
- ↳ functions as a federal state.
- ↳ System of judicial review to check the validity of laws.
- ↳ Basic Structure doctrine empowers Judiciary

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India's Constitutional framework balances between Parliamentary Sovereignty & Constitutional Supremacy:

There is a fine and well-thought balance in between the foreign powers of parliament and Constitutional limit on these foreign powers in India.

↳ Limited jurisdiction: All the three organs of the government has to operate within the limits prescribed by the Constitution.

Ex: Constitution safeguards the independence of Judiciary by preventing Parliament from commenting on the conduct of judges.

↳ Limitations On Legislative power: Law making authority of parliament is confined to the subjects enumerated in the Union and Concurrent list.

↳ Limitations On Constituent power: Indian Parliament cannot amend the Constitution by the same procedure as ordinary laws. Even Under Art. 368, Judicial review limits the Parliamentary authority to amend the Constitution.

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↳ Fundamental Rights : These rights are Justiciable prohibiting ~~states~~ the state from making a law that takes away fundamental right.

↳ Judicial review : Through this tool, judiciary can review laws and declare them null and void if they violate the Constitution.

Thus, we have seen that the Indian system incorporates checks and balances to limit the power of parliament from becoming absolute or too powerful. While parliament has the power to legislate but within the Constitutional framework only. It balances Parliamentary sovereignty and Constitutional Supremacy by cushining the Constitution as the Supreme law. And by empowering the judiciary with judicial review to ensure Constitutional Compliance.